

# OREGON STATE HOSPITAL

## POLICY

**SECTION 8:** Safety, Security, Emergency Management **POLICY: 8.002**

**SUBJECT:** Emergency Care Provided by OSH

**POINT PERSON:** Chief Medical Officer

**APPROVED:** Sara Walker, MD  **DATE: JULY 25, 2024**  
Interim Superintendent

**SELECT ONE:** ☐ New policy ☐ Minor/technical revision of existing policy  
☒ Reaffirmation of existing policy ☐ Major revision of existing policy

### I. PURPOSE AND APPLICABILITY

- A. This policy concerns the reasonable assistance that staff must offer to a person experiencing an apparent emergency medical condition.
- B. This policy applies to all staff.

### II. POLICY

- A. In accordance with Oregon State Hospital (OSH) licensing requirements, OSH does not provide emergency medical, surgical, or psychiatric care to the public or staff. However, staff must offer reasonable assistance to any person experiencing an apparent emergency medical condition within the scope of their training and according to the provisions of this policy and procedures.
- B. If a person appears to experience an emergency medical condition, including when a member of the public comes to OSH seeking treatment, a physician, nurse practitioner (NP), or registered nurse (RN) must assess whether the person is experiencing an emergency medical condition and determine whether the person needs additional emergency care.
  - 1. If needed, staff must initiate Code Blue per OSH Policy and Procedure 8.038, "Code Blue Medical Emergency".
  - 2. When a member of the public comes to OSH seeking treatment and a physician, NP, or RN determines the person is experiencing a psychiatric emergency medical condition, staff may call 911 when needed.

3. Staff may refer the person to the person's primary medical or psychiatric provider or assist them with contacting the psychiatric acute crisis system in their county of origin.
  4. Staff may not transport the person seeking care or treatment.
- C. If a person experiences an emergency medical condition during an off-grounds outing, staff must call 911.
1. Until EMS response arrives, staff should assess and treat the person as appropriate within their professional scope of practice and training.
  2. Once EMS arrives, staff should request the person experiencing an emergency medical condition be transported to the nearest appropriate care facility.
- D. When a staff member experiences an emergency medical condition and a physician, NP, or RN assesses they need further medical assessment or care, staff must follow the OSH policy on injured staff transportation.
- E. In the event a person exercises the "Safe Place for Newborns Act" and wishes to leave a newborn at OSH, staff must follow related procedures for receiving a newborn at OSH.
- F. OSH follows all applicable regulations, including federal and state statutes and rules; Oregon Department of Administrative Services (DAS), Shared Services, and Oregon Health Authority (OHA) policies; and relevant accreditation standards. Such regulations supersede the provisions of this policy unless this policy is more restrictive.
- G. Staff who fail to comply with this policy or related policy attachments or protocols may be subject to disciplinary action, up to and including dismissal.

### III. DEFINITIONS

- A. "Emergency medical condition" has the same meaning as the term in 42 Code of Federal Regulations § 489.24 and means:
1. a medical condition manifesting itself by acute symptoms of sufficient severity (including severe pain, psychiatric disturbances and/or symptoms of substance abuse) such that the absence of immediate medical attention could reasonably be expected to result in:
    - a. placing the health of the individual (or, with respect to a pregnant woman, the health of the woman or her unborn child) in serious jeopardy;
    - b. serious impairment to bodily functions; or

- c. serious dysfunction of any bodily organ or part; or
- 2. with respect to a pregnant woman who is having contractions:
  - a. that there is inadequate time to effect a safe transfer to another hospital before delivery; or
  - b. that transfer may pose a threat to the health or safety of the woman or the unborn child.
- B. “Code Blue” has the same meaning as the term in OSH Policy and Procedure 8.038, “Code Blue Medical Emergency”.
- C. “Staff” includes employees, volunteers, trainees, interns, contractors, vendors, and other state employees assigned to work at Oregon State Hospital (OSH).

#### **IV. PROCEDURES**

Procedures A Emergency Medical Condition Response

Procedures B Receiving Newborn from Parent

#### **V. RELATED OSH POLICIES AND PROTOCOLS**

1.003 Incident Reporting

5.012 Injury or Illness Reporting

5.024 HEART Trauma Response Program

8.009 OSH Safety Programs

8.038 Code Blue Medical Emergency

#### **VI. REFERENCES**

42 CFR § 482.12(f)2.

42 CFR § 489.24.

Joint Commission Resources, Inc. (2024). *Comprehensive accreditation manual for hospitals*, MS.03.01.01. Oakbrook Terrace, IL: Author.

Oregon Administrative Rule § 333-520-0070.

Oregon Revised Statutes §§ 30.800 – 30.807.

Oregon Revised Statutes § 278.405

Oregon Revised Statutes § 283.310

Oregon Revised Statutes § 283.340

Oregon Revised Statutes § 283.345

Oregon Revised Statutes § 283.395

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Oregon Revised Statute § 418.017.